

TENTATIVE RULING

People of the State of California

v.

\$11,000 U.S. Currency

25CV001381

Further Case Management Conference and Petitioner's Motion to Deem Matters Admitted

Hearing Date: July 31, 2026

The Further Case Management Conference ("CMC") and hearing on Petitioner People of the State of California's ("Petitioner") motion for an order that the truth of the matters specified in its Requests for Admission, Set One, to Real Party in Interest Gina Cervantes is **CONTINUED to August 14, 2026**, at 8:30 a.m. in Department 14, to allow Petitioner to file and serve signed moving papers, as Code of Civil Procedure sections 128.7 and 2015.5 require.

Petitioner filed a notice of motion, a memorandum, and an attorney's declaration in support of Petitioner's motion, which are unsigned. Unsigned moving papers "shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." [Code Civ. Proc. § 128.7, subd. (a).] Furthermore, "a declaration must be signed and recite that the person making it certifies it to be true under penalty of perjury." [*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 941 (citing Code Civ. Proc. § 2015.5).]

Petitioner shall file and serve signed papers supporting its motion by August 5, 2026. The CMC and hearing set for July 31, 2026, are continued to August 14, 2026.

Petitioner shall give notice of the Court's Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.